

Tentative Rulings
July 30, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Wissa v. Nguyen, et al.*, Case No. CIVSB2601308
Defendant Redlands Community Hospital's Demurrer
7/30/26, 9:00 a.m., S-17

Tentative Ruling

The Court would **OVERULE**.

Case Summary

This is a medical malpractice case. Plaintiff alleges that on March 8, 2015, he went to the emergency room at Redlands Community Hospital (Redlands) after experiencing abdominal pain. A CT scan was ordered and reviewed by Defendant Dr. Nguyen, and he concluded that Plaintiff was suffering from kidney stones and recommended fluids and a follow-up with his primary care physician. However, the CT scan also allegedly showed a growth on his right kidney, which was never disclosed to Plaintiff. Neither was the recommendation to undergo a CT urogram. (Compl. ¶¶ 11-13.) Plaintiff alleges this failure delayed the discovery of the concern and was, therefore, made worse and exacerbated by the lack of testing, monitoring, and treatment that, he asserts should have been recommended. Later that month, he was diagnosed with renal cancer. As such he filed this medical malpractice case on January 1, 2026, alleging negligence against each of the parties.

Analysis

Redlands now demurs to the second cause of action for negligence (Count II). Redlands contends that the action is barred due to the statute of limitations for professional medical negligence.

The issue is the date the injury. Specifically, Redlands demurs on the basis that the date of injury was when Plaintiffs' physicians should have told him about the growth on his kidney and recommended a CT urogram in March 2015. Redlands argues that since it has been more than 10 years from that date, Plaintiff is barred by the statute of limitations under section 340.5. Plaintiff responds by asserting that the date of injury occurred in June 2025, when Plaintiff was diagnosed with renal cancer.

Under Section 340.5, "an action for injury or death against a health care provider based upon such person's alleged professional negligence" must be brought within "three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." "[T]he special statute of limitations for professional negligence actions against health care providers applies only to actions alleging injury suffered as a result of negligence in rendering the professional services that hospitals and others provide by virtue of being health care professionals: that is, the provision of medical care to patients." (*Flores v. Presbyterian Intercommunity Hosp.* (2016) 63 Cal.4th 75, 88.)

“The term ‘injury’ for purposes of section 340.5 ‘refer[s] to the damaging effect of the alleged wrongful act and not to the act itself.’” (*Filosa v. Alagappan* (2020) 59 Cal.App.5th 772, 779.) “An injury manifests when damage is ‘evidenced in some significant fashion; when the damage has clearly surfaced and is noticeable.’” (*Filosa, supra*, 59 Cal.App.5th p. 779 [internal citation omitted].)

The Plaintiff also cites and relies on *Steingart v. White* (1988) 198 Cal.App.3d 406, in which the plaintiff discovered a lump in her breast, which the defendant doctor diagnosed as a benign condition in February 1982. The *Steingart* court rejected the defendant’s argument that the plaintiff suffered an injury at the time the defendant examined her in 1982, instead concluding that – although the plaintiff knew about the lump at the time of the 1982 examination – “such a condition is not a clear indication of injury, either damaging effect or appreciable harm.” (*Steingart, supra*, 198 Cal.App.3d at pp. 414–415.) One Court has stated the proposition more clearly: “We accept the *Steingart* proposition that severe damage which does not show itself (hidden cancer, for instance) is not ‘injury’ until it is found by diagnosis.” (*Marriage & Family Center v. Superior Court* (1991) 228 Cal.App.3d 1647, 1654, modified (Apr. 25, 1991).)

Here, Plaintiff alleges sufficient facts that his injury did not manifest until his cancer diagnosis in June 2025. Plaintiff alleges that he went to Redlands’ emergency room in March 2015, after he had experienced abdominal pain and vomiting. Plaintiff was not informed of the growth on his kidney, nor was he informed of the recommendation that he should undergo a urogram. The complaint does not allege that Plaintiff had any other symptoms until more severe symptoms in June 2025. This triggered Plaintiff visiting another hospital, where he was diagnosed with renal cancer. A month later, Plaintiff found out that he had a growth on his kidney dating back to at least March 2015.

In this matter, Plaintiff alleges he had no other symptoms until 10 years later when he had bloody urine in June 2025. No other facts exist to show that Plaintiff had become aware of additional, appreciable harm. In the same month, Plaintiff sought medical care and was diagnosed with renal cancer. Plaintiff filed his complaint in January 2026, within six months of the date of injury. As such, Redlands statute of limitations argument is not demonstrated from the face of the complaint.
